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AMAZON.COM SERVICES LLC

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, a Delaware limited liability company; ACCURATE BACKGROUND LLC, a California liability company; and DOES 1-10, inclusive,

Defendants.

Case No. _____

DEFENDANT AMAZON.COM SERVICES LLC'S NOTICE OF REMOVAL OF ACTION TO FEDERAL COURT

[28 U.S.C. §§ 1331, 1441, and 1446]

TO THE UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA AND TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that pursuant to 28 U.S.C. §§ 1331, 1441, and 1446, Defendant Amazon.com Services LLC ("Amazon") hereby removes the above-entitled action from the Superior Court of the State of California, County of Alameda, to the United States District Court for the Northern District of California. Defendant Accurate Background, LLC ("Accurate") consents to removal of this action to federal court. This Court has original subject matter jurisdiction in the form of federal question jurisdiction pursuant to 28 U.S.C. § 1331 because the Complaint asserts claims arising under the laws of the United States.

Amazon states the following in support of this removal:

I. SUMMARY OF COMPLAINT AND OTHER PLEADINGS

1. On July 28, 2026, Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff") filed a complaint in the Superior Court of the State of California, County of Alameda, entitled *Brendan Ngehsi Newanforbi v. Amazon.com Services, LLC et al.*, Case No. 26CV201554 (the "Complaint"). The Complaint alleges seven causes of action: (1) violation of section 290.46 of the California Penal Code; (2) violation of the California Fair Chance Act, (3) violation of the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.*, (4) violation of the Investigative Consumer Reporting Agencies Act, section 1786 of the California Civil Code, (5) invasion of privacy, (6) unfair, unlawful, and fraudulent business practices in violation of sections 17200 *et seq.* of the California Business and Professions Code, and (7) intentional infliction of emotional distress.

2. On July 31, 2026, Plaintiff caused the Complaint, Summons, Notice of Case Assignment, and Notice of Case Management Conference to be served on Amazon. A true and correct copy of the Complaint served on Amazon is attached as **Exhibit 1** and incorporated by reference. True and correct copies of the other case-initiating documents served on Amazon with the Complaint are attached as **Exhibit 2** and incorporated by reference.

3. On July 28, 2026, Plaintiff filed a Civil Case Cover Sheet, which is attached as **Exhibit 3** and incorporated by reference.

4. On August 3, 2026, the state court issued an order on court fee waiver, which is attached as **Exhibit 4** and incorporated by reference.

5. On August 6, 2026, Plaintiff filed a Notice of Payment of Filing Fee; Withdrawal of Request to Waive Court Fees as Moot, which is attached as **Exhibit 5** and incorporated by reference.

6. On August 6, 2026, Plaintiff filed Notices of Amount of Punitive Damages Sought against Amazon and Accurate, which are attached as **Exhibits 6** and **7**, respectively, and incorporated by reference.

7. On August 7, 2026, Plaintiff filed Proofs of Service of Summons as to Amazon and Accurate, which are attached as **Exhibits 8** and **9**, respectively, and incorporated by reference.

8. On August 24, 2026, Amazon caused a Notice of Appearance to be filed, which is attached as **Exhibit 10** and incorporated by reference.

9. Exhibits 1 through 10 constitute all the pleadings, process and orders served upon Amazon in the Superior Court action.

II. THE REMOVAL IS TIMELY

10. This Notice of Removal is filed within thirty (30) days after service of the Summons and Complaint on Amazon. Accordingly, this Notice of Removal is timely under 28 U.S.C. § 1446(b).

III. FEDERAL QUESTION JURISDICTION EXISTS UNDER 28 U.S.C. § 1331

11. This is a civil action over which this Court has original jurisdiction pursuant to 28 U.S.C. § 1331 and is one that may be removed pursuant to 28 U.S.C. § 1441(a).

12. Federal question jurisdiction exists under 28 U.S.C. § 1331 where a complaint asserts a claim "arising under the Constitution, laws, or treatises of the United States." *See* 28 U.S.C. § 1331; *Ethridge v. Harbor House Rest.*, 861 F.2d 1389, 1393-94 (9th Cir. 1988) ("When a plaintiff's complaint relies on federal law as the source of recovery, it is obvious that the case 'arises under' federal law and therefore may be removed to federal court."). The presence or absence of federal question jurisdiction is governed by the "well-pleaded" complaint rule, which

provides that federal jurisdiction exists "when a federal question is presented on the face of the plaintiff's properly pleaded complaint." *Id.* at 1394.

13. This Court has original jurisdiction over the action pursuant to 28 U.S.C. § 1331 because Plaintiff has alleged a claim under the Fair Credit Reporting Act ("FCRA"), 15 U.S.C. §§ 1681 *et seq.*, which is a federal statute and presents a federal question.

14. Plaintiff's state law claims arise out of the same case or controversy as the FCRA claim. Therefore, pursuant to 28 U.S.C. § 1367(a), this Court may properly exercise supplemental jurisdiction over Plaintiff's state law claims.

IV. VENUE IS PROPER

15. Plaintiff originally filed this action in the Superior Court of the State of California, County of Alameda. Thus, venue for removal properly lies in the United States District Court for the Northern District of California (28 U.S.C. § 84(a), 1446(a)) and this action may be removed to this Court pursuant to 28 U.S.C. § 1441(a) because this district embraces the place in which the removed state action is and has been pending.

V. THE OTHER PREREQUISITES FOR REMOVAL HAVE BEEN SATISFIED

16. As set forth above, this Notice of Removal is filed within thirty (30) days of service of process on Amazon and all process, pleadings, and orders filed and served on Amazon in this action are attached as Exhibits 1-10.

17. No previous Notice of Removal has been filed or made with this Court for the relief sought.

18. As required by 28 U.S.C. § 1446(d), Amazon will promptly serve Plaintiff with this Notice of Removal and will promptly file a copy of this Notice of Removal with the Superior Court of the State of California, County of Alameda.

19. Co-Defendant Accurate consents to the removal of this action. Accurate's notice of consent is attached hereto as **Exhibit 11** and incorporated by reference.

20. Doe defendants need not be joined in a notice of removal. *See Fristoe v. Reynolds Metals Co.*, 615 F.2d 1209, 213 (9th Cir. 1980).

21. If any question arises as to the propriety of the removal of this action, Amazon

requests the opportunity to present a brief and oral argument in support of its position that this case is removable.

22. By this Notice of Removal and the exhibits attached hereto and the documents filed concurrently herewith, Amazon does not intend to make any admissions of fact, law or liability relating to the claims in the Complaint, and it expressly reserves the right to make any and all defenses and motions necessary in its defense against Plaintiff's allegations.

WHEREFORE, Amazon respectfully requests that this action be removed from the Superior Court of the State of California, County of Alameda to the United States District Court for the Northern District of California.

Dated: August 31, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
Andrew P. Frederick

Attorney for Defendant
AMAZON.COM SERVICES LLC